

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #11	CCRB Case #: 201810036	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 11/25/2018 4:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/9/2021	Precinct: 120		
Date/Time CV Reported Sun, 11/25/2018 4:06 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/03/2018 9:46 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Frank Vega	11143	962150	120 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Mehmet Kanbur	03730	937826	120 PCT
2. POM Matthew Panik	06368	961064	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Frank Vega	Abuse: Police Officer Frank Vega threatened § 87(2)(b) with the use of a taser.	A . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) called 911 and was transferred to IAB to file this complaint on November 25, 2018, generating log number 18-46131. The complaint was received at the CCRB on December 3, 2018.

On November 25, 2018, at approximately 4:00 p.m., § 87(2)(b) was admitted into § 87(2)(b), in Staten Island § 87(2)(b). While he was in the emergency room, Police Officer Frank Vega of the 120th Precinct watched over him. § 87(2)(b) attempted to leave the emergency room to get a cup of coffee and was stopped by PO Vega. PO Vega placed his hand on his taser and threatened to use it on § 87(2)(b) if he did not return to his bed (**Allegation A – Abuse of Authority: Unsubstantiated**). § 87(4-b), § 87(2)(g)

There is no video footage associated with this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Frank Vega threatened § 87(2)(b) with the use of a taser.

§ 87(2)(b) was incarcerated at § 87(2)(b) for an unrelated incident and was interviewed via Video Teleconference by Inv. Casey McCann on January 28, 2019. § 87(2)(b) signed a verification form on February 21, 2019, which was obtained by the CCRB Field Team.

It is undisputed that PO Vega threatened § 87(2)(b) with a taser. § 87(2)(g)

§ 87(2)(b) alleged that while he was being treated at § 87(2)(b) he asked a doctor if he could get a cup of coffee and was told he could. § 87(2)(b) stood up to get the coffee and was stopped by PO Vega, who was assigned to watch over him in the emergency room. PO Vega told § 87(2)(b) two or three times to return to his bed and § 87(2)(b) did not comply. PO Vega then told § 87(2)(b) that if he did not sit down on the bed, he would shoot him with a taser. § 87(2)(b) sat on the bed and yelled at PO Vega.

§ 87(2)(b) who was § 87(2)(b) girlfriend at the time and present for the incident, provided an unverified telephone statement to the CCRB on December 11, 2018. § 87(2)(b) scheduled a field interview for February 26, 2019 and cancelled the appointment on the day of the interview. § 87(2)(b) was reached on March 1, 2019 and she stated that she no longer wanted to participate in the investigation. § 87(2)(b)

§ 87(2)(g)

PO Vega stated that he accompanied § 87(2)(b) to the hospital § 87(2)(b) was in and out of consciousness. PO Vega's partner, PO Matthew Panik, ended his tour and left PO Vega alone in the hospital. Once § 87(2)(b) was fully conscious, he stated that he wanted to go outside to smoke a cigarette. He told § 87(2)(b) that he could not leave the hospital. § 87(2)(b) told PO Vega that he was, "going to start breaking shit until [he] got [his] way." He then threatened to fight PO Vega if the latter attempted to arrest him. PO Vega replied, that if § 87(2)(b) tried to fight, he would be tased. PO Vega did not remove his taser from the holster at any point.

PO Panik was not present for PO Vega's interaction with § 87(2)(b) § 87(2)(b)

Sergeant Mehmet Kanbur was interviewed at the CCRB on March 8, 2019. He was the assigned patrol supervisor and responded to the hospital at the request of IAB to assess the situation. Sgt. Kanbur spoke to both § 87(2)(b) and PO Vega in regards to the incident. Sgt. Kanbur was told by PO Vega that § 87(2)(b) attempted to go out of the emergency room to get a cup of coffee and was denied by PO Vega. PO Vega told Sgt. Kanbur that he took out his taser and threatened to tase § 87(2)(b) if he did not return to the bed. PO Vega added that § 87(2)(b) was acting in an aggressive manner, which prompted him to issue the threat with the taser.

§ 87(2)(g)

It is recommended that **Allegation A be closed as Unsubstantiated.**

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 03).
- PO Vega has been a member of service for two years and has been a subject in two other CCRB complaints and two allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
 - § 87(2)(b)
 - 201808977, with a threat of arrest allegation remains open.

Mediation, Civil and Criminal Histories

- This complaint was not suitable for mediation.
- A Notice of Claim request was sent to New York City Office of the Comptroller on March 15, 2019 and the results are pending.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date